

SOFTWARE LICENSE AGREEMENT BETWEEN PINNACLE GROUP INC. AND STELLAR DYNAMICS CORP.

Between: **Pinnacle Group Inc.** (Licensor) and **Stellar Dynamics Corp.** (Licensee)

Effective Date: 2023-11-23

Termination Date: 2026-11-23

Governing Law: the laws of Singapore

1. Confidentiality

Each Party agrees to keep confidential all Confidential Information received from the other Party. This obligation shall survive termination of this Agreement for a period of three (3) years. Disclosure is permitted only to employees or advisors who have a need to know and are bound by obligations at least as restrictive as those set forth herein.

2. Term

This Agreement shall commence on the Effective Date, 2023-11-23, and shall continue until 2026-11-23, unless earlier terminated in accordance with Clause 1. Upon expiry, both Parties shall fulfil all outstanding obligations within fifteen (15) days.

3. Assignment

Neither Party may assign or transfer any of its rights or obligations under this Agreement without the prior written consent of the other Party. Any purported assignment in violation of this clause shall be null and void. Notwithstanding the foregoing, either Party may assign this Agreement to an affiliate without consent, provided it gives thirty (30) days' prior written notice.

4. Intellectual Property

All intellectual property rights in deliverables created specifically for Stellar Dynamics Corp. under this Agreement shall vest in Stellar Dynamics Corp. upon full payment. Pre-existing intellectual property of each Party shall remain with that Party. Pinnacle Group Inc. grants Stellar Dynamics Corp. a non-exclusive, royalty-free licence to use any pre-existing intellectual property embedded in the deliverables solely for Stellar Dynamics Corp.'s internal business purposes.

5. Dispute Resolution

Any dispute arising out of or in connection with this Agreement shall first be submitted to senior management of both Parties for resolution within thirty (30) days. If unresolved, disputes shall be referred to binding arbitration under the Arbitration and Conciliation Act, 1996. The seat of arbitration shall be Noida. The award shall be final and binding.

6. Non-Solicitation

During the term of this Agreement and for a period of twelve (12) months after its termination, neither Party shall directly or indirectly solicit or recruit any employee or contractor of the other Party who was involved in the performance of this Agreement, without prior written consent.

7. Notices

All notices under this Agreement shall be in writing and delivered to the addresses set out in Schedule B by registered post, courier, or email with read receipt. Notices shall be deemed received: (a) if by registered post, five (5) days after posting; (b) if by courier, one (1) business day after delivery; (c) if by email, on the day sent, provided no delivery failure notice is received.

8. Indemnification

Pinnacle Group Inc. shall indemnify, defend, and hold harmless Stellar Dynamics Corp. and its officers, directors, employees, and agents from and against any claims, losses, damages, liabilities, and expenses (including reasonable legal fees) arising out of Pinnacle Group Inc.'s breach of this Agreement or gross negligence or wilful misconduct. The indemnifying Party shall have the right to control the defence of any such claim.

9. Audit Rights

Stellar Dynamics Corp. or its authorised representative shall have the right, upon giving fifteen (15) days' written notice, to audit Pinnacle Group Inc.'s records relating to the Services and payments under this Agreement. Such audit shall be conducted during normal business hours and shall not unreasonably disrupt Pinnacle Group Inc.'s operations. The cost of the audit shall be borne by Stellar Dynamics Corp., unless the audit reveals an overcharge of more than five percent (5%), in which case Pinnacle Group Inc. shall bear the cost.

10. Definitions

In this Agreement, the following terms shall have the meanings ascribed to them herein. "Agreement" means this software license Agreement dated 2023-11-23 between Pinnacle Group Inc. and Stellar Dynamics Corp.. "Services" means the services described in Clause 3. "Confidential Information" means any information disclosed by either Party that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information.

11. Representations and Warranties

Each Party represents and warrants that: (a) it has full power and authority to enter into this Agreement; (b) this Agreement has been duly authorised and constitutes a valid, binding obligation; (c) the execution, delivery, and performance of this Agreement do not violate any applicable law, regulation, or third-party agreement.

12. Force Majeure

Neither Party shall be liable for any failure or delay in performance under this Agreement (other than payment obligations) to the extent caused by circumstances beyond the reasonable control of the affected Party, including but not limited to acts of God, war, terrorism, riots, epidemics, government actions, or internet or telecommunications failures. The affected Party shall promptly notify the other.

13. Entire Agreement

This Agreement, together with all Schedules and Exhibits attached hereto, constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior negotiations, representations, warranties, and understandings of any kind, whether written or oral.

14. Insurance

Pinnacle Group Inc. shall, throughout the term of this Agreement, maintain at its own cost: (a) professional indemnity insurance of not less than Rs. 71,00,000 (Rupees Seventy-one lakh Only) per occurrence; (b) public liability insurance of not less than Rs. 71,00,000 (Rupees Seventy-one lakh Only) per occurrence; (c) employers' liability insurance as required by applicable law. Pinnacle Group Inc. shall provide evidence of such insurance upon request.

IN WITNESS WHEREOF

Licensor

Pinnacle Group Inc.

Signature: _____

Name: _____

Title: _____

Date: _____

Licensee

Stellar Dynamics Corp.

Signature: _____

Name: _____

Title: _____

Date: _____